

		In opposition, Plaintiff does not deny that Section 871.24 is applicable to this case. However, Plaintiff contends that, because the statute does not expressly state that compliance must be pled, there is no pleading requirement. In addition, Plaintiff contends that the statute was in fact complied with prior to the filing of the Complaint. While the statute does not address the pleading requirements, courts interpreting statutes in other contexts have held that compliance with statutory prerequisites is an element that must be pled by the plaintiff. (See, e.g., Caliber Bodyworks, Inc. v. Superior Ct. (2005) 134 Cal. App. 4th 365, 371 (pleading in PAGA action); Kim v. Konad USA Distribution, Inc. (2014) 226 Cal.App.4th 1336, 1345-46 (pleading requirement in actions for FEHA violations). Accordingly, the motion is granted. Defendant to give notice
105	Abinante vs. Collins 25-01457284	1. Motion to Appear Pro Hac Vice x 2 Plaintiffs Dr. Matthew Abinante, D.O., Rume Health, LLC, and Rume Medical Group, Inc. move this Court for orders granting the Applications of Kelly B. Kramer and Hiral D. Mehta for Admission Pro Hac Vice as counsel herein. (ROAs 369, 370). Motions are granted per CRC 9.40(a). 2. Case Management Conference Moving party to give notice.
106	Prime Healthcare Services - Garden Grove, LLC vs.	Motion to Seal

	Optumcare Management, LLC 23-01357480	Defendant OptumCare Management, LLC moves for an order sealing Exhibits G, K, M, N, O, P, and Q to the Wood Declaration in support of Optum's Motions in Limine Nos. 1-8, Exhibits A, C, F, G, H, and K to the Poth Declaration in support of Plaintiffs' Motions in Limine Nos. 1-3, and Exhibits 5-7, 13, 15, 17, and 18 to the Wood Declaration in support of Optum's Oppositions to Plaintiffs' Motions in Limine Nos. 1-3 and Addendum to Optum's Motion in Limine No. 7. Under California Rules of Court, rule 2.550(d), the Court may order a record to be filed under seal if it finds that: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal. 4th 1178, 1218.) Exhibits G, K, 5, 6, and 7 to the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration include references to patient names and account numbers. This information is confidential and protected and there is no public interest in this information that overrides the patients' right to privacy. (Manela v. Superior Court (2009) 177 Cal.App.4th 1139, 1150; Oiyee v. Fox (2012) 211 Cal.App.4th 1036, 1070.) If the exhibits are not sealed, the right to privacy of these nonparty patients will be prejudiced and the requested sealing is narrowly tailored. Thus, the Motion as to Exhibits G, K, 5, 6, and 7 of the Wood Declarations and Exhibits A, C, F, H, and K to the Poth Declaration is GRANTED. Exhibits M, N, O, P, Q, 13, 15, 17, and 18 to the Wood Declarations and Exhibit G to the Poth Declaration contain information regarding analytical methods, reimbursement approaches, pricing methodology, and benchmarking analyses. Optum contends disclosure of
--	---	---